

**Before the Federal Maritime Commission, Washington, DC.**

**Docket No. 25-08**

**FormuKleen, Inc.**  
(Complainant)

vs.

**Top Shipping Systems, Corp.**  
(Respondent)

**COMPLAINANT’S MOTION FOR RECONSIDERATION OF ORDER GRANTING**

**RESPONDENT’S MOTION FOR EXTENSION OF TIME**

Complainant FormuKleen, Inc., by and through its representative Sara Dandan, respectfully moves for reconsideration of the April 13, 2026 Order Granting Respondent’s Motion for Extension of Time.

The April 13, 2026 Order should be reconsidered because it acknowledges the controlling rule and then grants relief contrary to it. The Order expressly recognizes Complainant’s argument that 46 C.F.R. § 502.23(d) provides that substitution of counsel “will not, by itself, be considered good cause for delaying a proceeding,” yet grants Respondent a fourteen-day extension based on exactly that circumstance: Respondent’s retention of new counsel and counsel’s desire for time to become familiar with the file and oversee compliance. Respondent’s motion did not identify any extraordinary burden, unforeseen event, or circumstance outside Respondent’s control. It said only that new counsel had been retained that morning and wanted more time. That is not good cause under the Commission’s rules.

Rule 502.102(a) permits an enlargement of time only upon a showing of good cause. Rule 502.23(d) then makes clear that substitution of counsel, standing alone, is not such cause. The April 15 deadline did not require new counsel to draft a complex merits brief. It required Respondent to locate and produce its own records and provide a sworn declaration about its own document systems and searches. The April 13 Order does not identify anything beyond substitution of counsel and generalized assertions that counsel requires time to review the file and supervise the search. Respectfully, that is not an application of Rule 502.23(d); it is a departure from it without identifying any independent basis for good cause.

Additionally, the April 13, 2026 Order did address Rule 502.102(a)'s seven-day timing requirement, but only by accepting as "reasonable grounds" the same substitution-of-counsel rationale that Rule 502.23(d) expressly provides is not, by itself, good cause for delay. Thus, the same substitution-of-counsel rationale was used both to excuse the late filing and to justify the enlargement itself. The Commission's rules do not permit a single insufficient basis to do double duty.

The timing of Respondent's request underscores the point. Respondent moved on April 10, 2026, while still having five full days remaining to comply with the April 1, 2026 Order. As of Monday, when the Commission received the parties' filings, Respondent still had three full business days remaining to comply, and Respondent admitted in its own motion that the document-gathering process had already begun. In other words, this was not a case where compliance had become impossible or where Respondent had exhausted the time already provided. Respondent sought relief before its existing time had run, despite already being

engaged in the very work it claimed required more time. The Order does not identify any reason why those remaining days were insufficient.

That omission matters because the April 1, 2026 Order did not impose any new or surprising burden. The ALJ had already granted Complainant's motion to compel in part, ordered supplementation of Requests for Production Nos. 4 and 7 and Interrogatory No. 1, and required a sworn declaration under penalty of perjury because Respondent's prior responses raised concern about poor recordkeeping and/or spoliation. These obligations did not arise on April 10. They arose months earlier when the discovery was served, and at the latest on April 1 when the ALJ entered the Order.

The prejudice to Complainant is also not answered by the Order's suggestion that the schedule can simply be extended further if necessary. That reasoning does not cure the prejudice; it compounds it. Respondent's deficient discovery conduct has already forced motion practice, ALJ intervention, and disruption of the case schedule. Granting still more time on the ground that future deadlines can also be pushed back simply rewards the very delay that made motion practice necessary in the first place.

The April 13 Order also did not address Complainant's narrower alternative request. In its opposition, Complainant expressly argued that, even if any enlargement were granted, Respondent should still be required to comply by April 15, 2026 with the portion of the April 1, 2026 Order compelling supplementation of Interrogatory No. 1. That request was not addressed. That is significant because Interrogatory No. 1 concerns basic identifying information that Respondent should already possess and that does not depend on two additional weeks of file review by new counsel. Even if the ALJ was inclined to grant some limited extension, there was

no reason to extend that already-compelled interrogatory wholesale without addressing Complainant's specific request.

Respondent asked for indulgence based on a circumstance the Commission's rules expressly say is not, by itself, good cause. The Order acknowledged that rule and granted the relief anyway. Complainant respectfully submits that this was clear error and should be corrected. Respondent cannot allow the existing deadline to run, substitute counsel on the eve of compliance, and then rely on that substitution as good cause.

**WHEREFORE**, Complainant respectfully requests that the ALJ reconsider the April 13, 2026 Order, vacate the extension, and reinstate the April 15, 2026 compliance deadline. Complainant further requests that Respondent be ordered to supplement Interrogatory No. 1 immediately.

Respectfully submitted,

**Sara Dandan**

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**Date: 04/13/2026**

**CERTIFICATE OF SERVICE**

I certify that on April 13th, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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